

Stereo. H C J D A 38.
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No. 78466 of 2019

Amjad Khalil etc. **Versus** Muhammad Hashim Riaz

J U D G M E N T

Date of Hearing	04.05.2026
For Petitioners:	M/s. Hassan Iqbal Warraich, Arslan Abbas & Sardar Asadullah, Advocates.
For Respondents:	M/s. Nauman Qureshi, Malik Ilyas Ahmad Awan and Rana Muhammad Ashraf Advocates.

Hassan Nawaz Makhdoom, J.- Through this revision petition under Section 115 C.P.C., the petitioners have called in question the judgment and decree dated 28.11.2019 passed by the learned Additional District Judge, Gujranwala, whereby the appeal preferred by the respondent was allowed, the judgment and decree dated 01.06.2016 passed by the learned Civil Judge 1st Class, Gujranwala, was set aside and the respondent's suit for possession through pre-emption was decreed.

2. Briefly, the facts are that the respondent instituted a suit for possession through pre-emption alleging that Muhammad Qasim was owner in possession of land measuring 98 kanals 04 marlas, comprised in Khewat No.108, Khatauni No.151, situated at Mouza Nowshera Sansi, Tehsil and District Gujranwala; that the said Muhammad Qasim sold the suit property to the petitioners through sale mutation No.4008 dated 16.04.2011 for a consideration of Rs.1,55,00,000; that the respondent allegedly came to know of the sale on 08.06.2011 at about 04:00 p.m. through Muhammad Ameen, when he was present in his 'Dera' along with Muhammad Riaz; that he immediately announced his intention to pre-empt the sale and thereafter, on 15.06.2011, allegedly performed Talb-e-Ishhad by sending notices through registered post to the vendees. The

respondent claimed superior right of pre-emption as ‘Shafi Sharik’, ‘Shafi Khalit’ and ‘Shafi Jar’.

3. The petitioners contested the suit, denied the respondent’s claim and specifically questioned the alleged knowledge, performance of Talbs, service of notices and maintainability of the suit.

4. Out of the divergent pleadings of the parties, the learned trial Court on 21.03.2012 framed the following issues:-

1. *Whether the plaintiff has superior right of pre-emption qua the defendants? OPP*
2. *Whether plaintiff has fulfilled all the requisite Talbs as per law? OPP*
3. *Whether the actual sale price of the subject matter suit property is Rs.1,55,00,000/- but the defendants, to defeat the precious right of plaintiff, have got mentioned Rs.17,00,000/- as ostensible sale price? OPP*
4. *If the above issues No.1 to 3 is proved in affirmative, whether plaintiff is entitled to get decree for possession through pre-emption regarding the subject matter suit property, as prayed for? OPP*
5. *Whether suit of the plaintiff is without any cause of action and locus standi? OPD*
6. *Whether suit is not maintainable in its present form? OPD*
7. *Whether this suit is false, frivolous and vexatious, hence the defendants are entitled to special costs under Section 35-A CPC? OPD*
8. *Relief.*

Subsequently, through order dated 12.09.2012 passed on an application under Order XIV Rule 5 CPC, moved by the petitioner, the onus of issue No.3 was altered and it was also observed that the reference to “issues No.1 to 3” in issue No.4 would be read as “issues No.1 and 2”.

5. In order to establish his claim, the respondent/plaintiff entered the witness box as PW-4 and also examined Saleem Akhtar, Clerk, Sessions Courts, Gujranwala, as PW-1, Muhammad Arif, Postman Jaleel Town Gujranwala, as PW-2, Nisar Ahmad, Postman GPO Gujranwala, as PW-3, Muhammad Ameen s/o Ghulam Rasool as PW-5 and Muhammad Riaz son of Inayat Ullah as PW-6. In documentary evidence, the respondent produced postal receipt along with acknowledgment due (AD) in the name of Bilal Ahmad as Ex.P-1, registered envelope in the name of Bilal Ahmad as Ex.P-2, postal receipt along with envelope in the name of Amjad Khalil as Ex.P-3, registered envelope in the name of Amjad Khalil as Ex.P-4, notice of Talb-e-Ishhad addressed to Bilal Ahmad as Ex.P-5, notice of Talb-e-Ishhad addressed to Amjad Khalil as Ex.P-6, attested copy of sale deed dated 16.04.2011 as Ex.P-7, copy of Register Haq Daran-e-Zamin for the year 2003-04 as Ex.P-8, Aks Shajra Mouza Nowshehra Sansi as Ex.P-9, and copy of Register Haq Daran-e-Zamin for the year 2007-08 as Ex.P-10. On the other hand, the petitioners/ defendants produced Bilal Ahmad as DW-1 in rebuttal and did not bring on record any documentary evidence.

6. The learned trial Court, after evaluating the entire oral as well as documentary evidence, vide judgment and decree dated 01.06.2016, dismissed the suit with costs.

7. Feeling aggrieved, the respondent/plaintiff preferred an appeal, which was accepted by the learned lower Appellate Court (Addl. Distt. Judge, Gujranwala) vide the impugned judgment and decree dated 28.11.2019; the findings of the trial Court were reversed, and the suit was decreed subject to deposit of the balance sale consideration within thirty days. Hence, the instant revision petition.

8. Learned counsel for the petitioners submits that the learned lower Appellate Court has exceeded the lawful limits of appellate interference by reversing a well-reasoned judgment of the trial Court

without properly adverting to the strict statutory requirements of pre-emption. He contends that pre-emption is a weak right and the burden lies heavily upon the pre-emptor to prove each ‘Talb’ strictly, clearly and affirmatively. He further submits that the respondent failed to prove the alleged immediate declaration after knowledge of sale; that the alleged informer PW-5 was unreliable; that the alleged source of information was neither natural nor satisfactorily proved; that the respondent admitted that the petitioners were in possession since purchase, which rendered his plea of delayed knowledge doubtful; and that the notices of ‘Talb-e-Ishhad’ were admittedly not served upon the vendees. Reliance has been placed upon the principles laid down in “Sardar Muhammad (deceased) through L.Rs. v. Taj Muhammad (deceased) through L.Rs. and others” (2023 SCMR 1113), “Ch. Riaz Ahmad v. Munir Sultan Malik” (2022 SCMR 667), “Bilal Ahmad and another v. Abdul Hameed” (2020 SCMR 445), “Manzoor Hussain (deceased) through L.Rs. v. Misri Khan” (PLD 2020 SC 749), “Muhammad Zahid v. Dr. Muhammad Ali” (PLD 2014 SC 488), “Dayam Khan and others v. Muslim Khan” (2015 SCMR 222) and “Khan Afsar v. Afsar Khan and others” (2015 SCMR 311).

9. Conversely, learned counsel for the respondent supports the impugned judgment. He argues that the notices were sent at the correct addresses mentioned in the sale deed; that one of the petitioners admitted receiving correspondence at the same address; that once notices were dispatched through registered post, presumption of service arose; that the learned Appellate Court rightly preferred documentary evidence over the reports of postmen and that no jurisdictional defect exists in the appellate judgment. Reliance has been placed on “Muhammad Farid Khan v. Muhammad Ibrahim etc.” (2017 SCMR 679), “Hayat Muhammad and others v. Mazhar Hussain” (2006 SCMR 1410) and “Ghulam Abbas and another v. Manzoor Ahmad and another” (2008 SCMR 1366). Lastly contends that in case of conflict *inter se* the judgments of the lower *fora*,

preference is to be given to that of the learned appellate Court. Reliance is placed on “Syed Shehanshah Raza Hussain Rizvi v. Tariq Nawaz Khan and 3 others” (2025 YLR 575).

10. I have heard the learned counsel for the parties and gone through the record with their able assistance.

11. The controversy in the present lis substantially revolves around Issue No.2, namely, whether the respondent/plaintiff duly performed and proved all the requisite Talbs in accordance with law. Before advertng to the evidence brought on record, it would be advantageous to reproduce Section 13 of the Punjab Pre-emption Act, 1991, which reads as follows:-

13. *Demand of pre-emption. (1) The right of pre-emption of a person shall be extinguished unless such person makes demands of pre-emption in the following orders, namely:-*

- (a) *‘Talb-i-Muwathibat’;*
- (b) *‘Talb-i-Ishhad’; and*
- (c) *‘Talb-i-Khusumat’.*

Explanation

- I. *‘Talb-i-Muwathibat’ means immediate demand by a pre-emptor in the sitting or meeting (Majlis) in which he has come to know of the sale, declaring his intention to exercise the right of pre-emption.*

Note. Any words indicative of intention to exercise the right of pre-emption are sufficient.

- II. *‘Talb-i-Ishhad’ means demand by establishing evidence.*
- III. *‘Talb-i-Khusumat’ means demand by filing a suit.*

(2) *When the fact of sale comes within the knowledge of a pre-emptor through any source, he shall make Talb-i-Muwathibat.*

(3) *Where a pre-emptor has made Talb-i-Muwathibat under subsection (2), he shall as soon thereafter*

as possible but not later than two weeks from the date of knowledge make Talb-i-Ishhad by sending a notice in writing attested by two truthful witnesses, under registered cover acknowledgement due, to the vendee, confirming his intention to exercise the right of pre-emption:

A plain reading of the aforesaid provision clearly shows that performance of Talbs is not a mere formality or a technical requirement, but a strict and lawful compliance with the statutory requirements regarding Talbs is mandatory, as the very right to claim pre-emption depends upon due performance thereof. Mere existence of a superior right as Shafi Sharik, Shafi Khalit or Shafi Jar does not automatically entitle a person to a decree of pre-emption unless such right is activated and preserved through lawful and timely performance of Talb-i-Muwathibat followed by Talb-i-Ishhad in the manner prescribed by law. It is equally settled that the right of pre-emption is a weak and feeble right operating in derogation of a concluded sale transaction and, therefore, the statutory requirements governing performance of Talbs are to be construed and proved strictly in accordance with law and the principles settled by the superior Courts.

12. In the present case, the sale transaction admittedly took place on 16.04.2011 whereas the respondent/pre-emptor asserted that he acquired knowledge thereof on 08.06.2011, i.e., after an unexplained lapse of approximately fifty-two days. In order to explain this substantial delay, reliance was placed upon the testimony of PW-5 Muhammad Ameen, who allegedly procured information regarding the transaction from the office of the Sub-Registrar and, thereafter, conveyed the same to the respondent. The learned trial Court examined the testimony of the said witness with due caution and rightly found the same unreliable and unsafe. The witness failed to satisfactorily explain the manner in which he allegedly came across the transaction, his access to the official record maintained in the office of the Sub-Registrar, the circumstances under which he allegedly conducted the

search and how the information was subsequently conveyed to the respondent. His testimony neither appeared natural nor confidence inspiring and the complete chain of information remained shrouded in doubt.

13. The Hon'ble Supreme Court of Pakistan in Abdul Majeed and others v. Haji Haq Nawaz (2026 SCMR 138), while examining the concept and legal significance of Talb-i-Muwathibat, reiterated in unequivocal terms that immediate declaration of intention to exercise the right of pre-emption constitutes the very soul of the statutory demand and any doubt regarding lawful execution thereof must necessarily operate against the pre-emptor. It was emphasized that the burden squarely lies upon the pre-emptor to substantiate, through cogent, confidence-inspiring and unimpeachable evidence, that the immediate demand was in fact performed in the manner contemplated by Section 13 of the Punjab Pre-emption Act, 1991. It was further held that where surrounding circumstances create uncertainty regarding the spontaneity, timing or authenticity of the alleged declaration, the benefit of such doubt must invariably go to the vendee because the right of pre-emption, being a weak right, is to be construed strictly. In the said judgment, it was also observed that mere expression of a desire or inclination to pre-empt does not satisfy the statutory requirement of Talb-i-Muwathibat unless the statement clearly manifests an immediate and unequivocal declaration of intention to exercise the right of pre-emption. It was further held that if any doubt arises regarding execution of Talbs, the entire superstructure of the pre-emption suit becomes vulnerable and liable to collapse. The principles laid down in the aforesaid judgment apply to the facts of the present case with full force. The respondent/pre-emptor, in this case, failed to establish through trustworthy evidence that immediately upon acquiring knowledge of the sale he performed an unequivocal and spontaneous Talb-i-Muwathibat in accordance with law. The doubtful source of knowledge, the unexplained delay of approximately fifty-two

days, the unnatural conduct attributed to the informer (PW-5), and the surrounding circumstances discussed hereinabove cumulatively create serious uncertainty regarding the genuineness and immediacy of the alleged demand. Such doubt, in view of the settled position of law, must necessarily be resolved in favour of the vendees/petitioners. The learned Appellate Court, however, brushed aside these material infirmities merely on the premise that no rebuttal evidence had been produced by the petitioners/defendants which approach cannot be sustained in law. The burden to prove lawful and immediate performance of Talb-i-Muwathibat never shifts from the pre-emptor unless the initial burden is first discharged through trustworthy and unimpeachable evidence. The vendee is not required to prove a negative where the pre-emptor himself fails to establish his foundational facts in accordance with law. Also see Kashmala Khan and others v. Mst. Malala (2023 SCMR 1176), Muhammad Riaz v. Muhammad Akram and others (2024 SCMR 692) and Sher Ayaz Khan alias Sheraz Khana through L.Rs. and others v. Gul Najeeb Khan (2025 SCMR 380).

14. The learned trial Court had also rightly noticed that during cross-examination the respondent/pre-emptor admitted that the petitioners/vendees had been in possession of the suit property since the date of purchase. The respondent claimed himself to be Shafi Sharik, Shafi Khalit and Shafi Jar, i.e., a co-sharer, participator in appendages and owner of adjoining property. In such circumstances, his assertion that despite transfer of possession he remained unaware of the sale transaction for more than fifty-two days required strict, convincing and unimpeachable proof. The learned trial Court, while appreciating the surrounding circumstances, rightly drew an adverse inference against the respondent. The well-recognized principle that “possession is notice to public at large” squarely applies to the peculiar facts of the present case. Physical possession and occupation of immovable property ordinarily operates as a constructive notice to

persons having direct interest or close nexus with the property. Therefore, the respondent's plea that he remained completely oblivious of the transaction until informed by PW-5 appears unnatural and misconceived. The cumulative deficiencies appearing in the respondent's version regarding performance of the first Talb leave little room for doubt that the story subsequently projected by the respondent was an afterthought introduced merely to overcome the statutory requirement of immediacy. The learned trial Court, therefore, rightly concluded that lawful and immediate performance of Talb-i-Muwathibat had not been proved. The learned Appellate Court fell in patent error in treating these material circumstances as mere conjectures. It is settled that findings in civil matters are legitimately drawn from cumulative probabilities, admitted facts, conduct of parties and attending circumstances. The appreciation of evidence undertaken by the learned trial Court was neither arbitrary nor perverse so as to justify interference.

15. Another important aspect of the matter pertains to the alleged performance of Talb-i-Ishhad. The respondent/pre-emptor was not merely required to prepare or dispatch notices; rather, he was under a strict legal obligation to prove lawful performance of Talb-i-Ishhad in the manner mandated by Section 13(3) of the Punjab Pre-emption Act, 1991. The statutory requirement contemplates that the vendee must be duly apprised of the pre-emptor's intention to exercise the right of pre-emption through notice sent under registered cover acknowledgment due and, where service is disputed or denied, the burden squarely rests upon the pre-emptor to affirmatively establish actual service or refusal thereof through cogent, trustworthy and legally admissible evidence. Mere dispatch of notices, bereft of proof regarding lawful service or refusal thereof, does not by itself amount to valid compliance of Talb-i-Ishhad. The superior Courts have consistently held that the expression "sending notice" occurring in Section 13(3) of the Punjab Pre-emption Act, 1991 cannot be construed in isolation or interpreted

so liberally as to render the mandatory requirement of acknowledgment due and proof of service redundant or illusory. The statutory scheme clearly envisages not a mere formal dispatch of notice, but lawful communication of the pre-emptor's intention to the vendee in the manner prescribed by law.

16. The evidence of the postmen was crucial. PW-2 Muhammad Arif stated that the registered post relating to one vendee did not carry complete address and was returned un-served. PW-3 Nisar Ahmad stated that when he went to effect service upon the other vendee, he was informed that the addressee was hospitalized, whereupon the post was returned. Thus, the respondent's own evidence did not establish actual service or refusal by either of the vendee. The postmen produced by the respondent did not support service. Once the respondent himself produced the postmen and their testimony went against him on the point of service, the learned Appellate Court should not have discarded the same merely by invoking a general presumption of postal service.

17. The presumption arising from registered post is rebuttable. It cannot override direct evidence led by the party himself showing that the notices were returned un-served. The presumption of service may assist a party where a properly addressed registered article is proved to have been dispatched and there is no credible evidence to the contrary. However, where the postmen state that the notices were not served, and there is no proof of refusal by the vendees, the presumption stands displaced. The learned Appellate Court materially misdirected itself by treating dispatch as conclusive proof of service.

18. The learned Appellate Court further relied upon the fact that the addresses mentioned on the envelopes corresponded with the addresses available in the sale deed and that one defendant admitted receiving correspondence at the same address. This may prove correctness of address, but it does not by itself prove service of the notices of 'Talb-e-

Ishhad'. Correct address and actual service are two distinct matters. Even a correctly addressed notice may remain un-served. The respondent had to prove that the notices reached the vendees or that the vendees refused to receive them. This essential link remained missing.

19. The reasoning of the learned Appellate Court that acknowledgment due "seldom reaches the sender" and, therefore, dispatch should be treated as sufficient, is too broad and inconsistent with the strict nature of pre-emption law. In ordinary civil correspondence such presumption may have a wider field, but in pre-emption matters, where 'Talb-e-Ishhad' is a mandatory condition precedent and the vendee's proprietary rights are sought to be displaced, strict proof is required. The learned Appellate Court was not justified in diluting this standard.

20. The Hon'ble Supreme Court of Pakistan, in a consistent line of case law including Muhammad Bashir and others v. Abbas Ali Shah (2007 SCMR 1105), Dayam Khan and others v. Muslim Khan (2015 SCMR 222) and Khan Afsar v. Afsar Khan and others (2015 SCMR 311), has held that the statutory requirement of "sending notice in writing" under Section 13(3) of the Punjab Pre-emption Act, 1991 is not satisfied by mere dispatch of notice through registered post. The requirement of "acknowledgement due" appended with the expression unmistakably signifies that the legislative intent is not confined to formal issuance or dispatch of notice by the pre-emptor, rather the notice must actually reach the addressee or refusal thereof must be affirmatively proved in accordance with law.

In *Muhammad Bashir's case* (supra), the Honourable Supreme Court, while interpreting the expression "sending notice in writing under registered cover acknowledgement due," authoritatively held as under:-

"11. The requirement of, 'sending a notice in writing' is followed by a rider i.e. 'under registered cover

acknowledgement due'. This signifies that the intention of law is not merely a formal notice on the part of the pre-emptor conveying his intention to pre-empt but a notice served on the addressee to apprise him about his intention to pre-empt. To say that mere 'sending of notice' is enough would make the expression 'acknowledgement due' redundant. The service of the addressee, as prescribed in law therefore, is imperative. If the acknowledgement card carries an endorsement of 'refusal' or 'not accepted', a presumption of service would arise unless it is rebutted. ..."

It was further concluded therein that the presumption of service in terms of Article 129 of the Qanun-e-Shahadat Order, 1984 read with Section 27 of the General Clauses Act does not arise in pre-emption matters once the addressee appears before the Court and specifically disowns receipt of notice of Talb-e-Ishhad. Also see Mir Muhammad Khan and 2 others v. Haider and others (PLD 2020 Supreme Court 233).

Reliance is further placed upon a recent judgment of the Hon'ble Supreme Court of Pakistan rendered in Sardar Muhammad (deceased) through LRs v. Taj Muhammad (deceased) through LRs and others (2023 SCMR 1113), wherein it is reiterated that performance of Talbs, particularly Talb-e-Ishhad, constitutes a mandatory pre-requisite for maintaining a suit for possession through pre-emption and failure to strictly prove even a single Talb renders the entire suit liable to fail.

21. The learned Appellate Court fell into error while observing that the learned trial Court had ignored the order dated 12.09.2012 pertaining to Issue No.3 viz the sale consideration. Even assuming, for the sake of argument, that Issue No.3, regarding the actual sale consideration, is to be construed in the manner suggested by the learned Appellate Court, such finding by itself could not improve or advance the respondent's case unless the respondent had first succeeded in proving lawful and strict performance of the mandatory Talbs as required under Section 13 of the Punjab Pre-emption Act, 1991. It is by now a settled proposition of law that the very maintainability and success of a suit for possession through pre-

emption is contingent upon strict proof of Talb-i-Muwathibat and Talb-i-Ishhad. The alleged superior right or dispute regarding sale consideration becomes wholly inconsequential once the mandatory statutory demands are not proved in the prescribed manner. In other words, lawful performance of Talb/s constitutes the foundational requirement upon which the entire structure of the pre-emption suit rests. In the present case, since the respondent/pre-emptor failed to establish lawful performance of both Talb-i-Muwathibat and Talb-i-Ishhad through reliable and legally admissible evidence, the question of his entitlement to a decree under Issue No.4 did not legally arise at all. The learned trial Court, after proper appreciation of the evidence and settled legal principles governing pre-emption matters, had rightly dismissed the suit. The learned Appellate Court, therefore, was not justified in reversing the well-reasoned findings of the learned trial Court merely on the basis of its observations regarding Issue No.3, which, in the peculiar facts of the case, did not materially affect the ultimate fate of the suit.

22. The authorities relied upon by the learned counsel for the respondent regarding ordinary presumption of postal service are clearly distinguishable on facts and circumstances of the present case. In those cases, either lawful refusal was proved or the factual foundation necessary for drawing presumption remained intact. However, in the present case, the respondent's own witnesses failed to support lawful service and the mandatory statutory requirements governing Talb-i-Ishhad remained unfulfilled. Therefore, the said precedents do not advance the respondent's case in any manner.

23. No doubt, as a general rule, findings recorded by the first Appellate Court ordinarily carry greater weight and preference over those of the trial Court, particularly where evidence has been reappraised in exercise of appellate jurisdiction. However, such principle is not absolute and is subject to the condition that reversal of

findings by the Appellate Court must itself be based upon proper appreciation of evidence, correct application of law and lawful reasoning. Where the Appellate Court misreads or non-reads material evidence, ignores binding precedents or reverses well-reasoned findings without satisfying the legal prerequisites governing appellate interference, such findings cannot be accorded immunity from revisional scrutiny. In the present case, the learned trial Court had undertaken a comprehensive and legally sound appraisal of the oral as well as documentary evidence and had recorded cogent reasons for disbelieving the respondent's story regarding performance of Talb-i-Muwathibat and Talb-i-Ishhad. The learned Appellate Court reversed those findings by misapplying the presumption of service, shifting the burden of proof from the pre-emptor to the vendees and overlooking the mandatory nature of statutory Talbs as repeatedly emphasized by the Hon'ble Supreme Court of Pakistan. Such reversal, therefore, suffers from material illegality and irregularity warranting interference by this Court in exercise of revisional jurisdiction under Section 115 CPC.

24. For what has been discussed above, this Civil Revision is allowed. The judgment and decree dated 28.11.2019 passed by the learned Additional District Judge, Gujranwala are hereby set aside and those dated 01.06.2016 passed by the learned Civil Judge 1st Class, Gujranwala, whereby the suit for possession through pre-emption was dismissed. with costs, are restored.

(Hassan Nawaz Makhdoom)
Judge

Announced/dictated on 04.05.2026
and signed on 20.05.2026.

Approved for Reporting

Judge

Tahir Noor